

not rise to the level of substantial probability of harm.

Order:

MBUSA's motion is **denied**, expect that with regard to Exhibit D, the court finds that while the information in Exhibit D is not highly embarrassing to the consumers listed, the privacy interests of individuals in their specific home address and home phone numbers (but not their business names, business addresses or business contact email or phone numbers) are important enough to order that all information of an individual's home address and home phone numbers be redacted and not publicly disclosed.

4. 9:00 AM CASE NUMBER: C23-02833
CASE NAME: DEBRA DRISCOLL VS. DOES 1 THROUGH 100, INCLUSIVE
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT**
FILED BY: HOOVER FLOORS
TENTATIVE RULING:

The Defendant's unopposed Motion to Set aside Default is granted. Defendant shall file its Answer or responsive pleading within 15 days of this September 18, 2026 order.

5. 9:00 AM CASE NUMBER: C24-02701
CASE NAME: ALYSS DORESE VS. AIDEN CIANI
***HEARING ON MOTION IN RE: ATTORNEY'S FEES PURSUANT TO CAL. CODE OF CIV. PROC.**
425.16(C)(1)
FILED BY: DORESE, ALYSS
TENTATIVE RULING:

The Court, having reviewed the moving and opposing papers on Plaintiff's Motion for Attorneys' Fees and Costs as having found good cause, hereby GRANTS IN PART Plaintiff's motion for attorney's fees against Defendant pursuant to Section 425.16(c)(1) of the California Code of Civil Procedure which is a subsection of the State of California's prohibition of strategic lawsuits against public participation ("Anti-SLAPP").

The Court hereby makes the following findings:

- 1) Plaintiff moved to strike per California's Anti-SLAPP procedure portions of Defendant's First Amended Cross-Complaint ("FACC");
- 2) The Court granted Plaintiff's Anti-SLAPP in part and struck portions of Defendant's FACC arising from Plaintiff's protected activity and thereby achieved a significant benefit from the motion and achieved the primary objective of said motion which was to strike Plaintiff's protected activity from Defendant's FACC;
- 3) Plaintiff therefore succeeded on their Anti-SLAPP motion;
- 4) Plaintiff's attorneys are therefore entitled to part of their reasonable fees and costs per

Section 425.16(c)(1) of the California Code of Civil Procedure.

The Court orders that Defendant shall pay \$8,000 in attorneys' fees to Plaintiff's counsel of record, Andrew Wolff, Esq. and the Law Office of Andrew Wolff, P.C., within 30 days of service of notice of entry of this Order.

6. 9:00 AM CASE NUMBER: C25-00379
CASE NAME: WELLS FARGO BANK, NATIONAL ASSOCIATION VS. CONCORD TECHNOLOGY CENTER PROPERTY OWNER, LLC
***HEARING ON MOTION IN RE: APPROVE RECEIVER'S FINAL REPORT AND DISCHARGE**
FILED BY: KIEFFER, DAVID
TENTATIVE RULING:

The Unopposed Motion of David Keiffer for an Order Approving the Final Report of Receiver and Related Relief and Discharge of Receiver is **granted**. **The Court will execute the proposed order lodged May 1, 2026.**

7. 9:00 AM CASE NUMBER: C25-00444
CASE NAME: KYANI-DEVAREU HARRIS VS. COUNTY OF CONTRA COSTA COURT
HEARING ON DEMURRER TO: COMPLAINT - SET BY COURT - ZOOM APPEARANCE IS OKAY
FILED BY:
TENTATIVE RULING:

Defendant Contra Costa County's Demurrer to Plaintiff Kyani-Devareu Harris's Complaint is **off calendar as moot**. Under Code of Civil Procedure section 472, a party may amend its complaint after a demurrer is filed but before the demurrer is heard if the amended complaint is filed and served no later than the date for filing an opposition to the demurrer. Plaintiff filed a First Amended Complaint on September 8, 2026, three days after the opposition deadline for a hearing on September 18, 2026. (Code Civ. Proc. § 1005(b).) Although the amended complaint was technically filed late, the Court would grant leave to amend in any event, and there is no purpose in examining the sufficiency of a superseded complaint.

8. 9:00 AM CASE NUMBER: C25-01631
CASE NAME: RACHEL HONG VS. JULIAN ORTON, III
MOTION TO BE RELIEVED AS COUNSEL FOR PB DEVELOPMENT
FILED BY: PB DEVELOPMENT GROUP, INC.
TENTATIVE RULING:

The unopposed Motion to be Relieved as Counsel for PB Development is granted. The Court will execute the proposed order lodged with the Court on August 13, 2026. The order will become effective upon service of the order upon the client.